

JASRAJ CHOPRA, J.

Jai Prakash versus Khimraj & others (21)

S.B. Civil Revision Petition No. 364 of 1988, decided on 6th Sept., 1990.

- (a) [C.P.C., Order 21, Rule 97—Only decree holder or the auction purchaser has a right to move application under O.21, R.97—Obstructor has no right to move the court.] (Para 8)

(क) सिविल प्रक्रिया संहिता—आदेश 21 नियम 97—केवल डिक्रीदार अथवा निलाय में खरीदने वाले को ही आवेदन प्रस्तुत करने का अधिकार आदेश 21 नियम 97 के अन्तर्गत है—आक्षेपकर्ता को न्यायालय में प्रस्तुत करने का कोई अधिकार नहीं है। (पद संख्या 8)

- (b) [C.P.C. Order 21, Rule 97—Application dismissed as withdrawn—Does not acquire the character of a decree—Principle of constructive res-judicata not applicable.] (Para 20 & 21)

(ख) सिविल प्रक्रिया संहिता—आदेश 21 नियम 97—आवेदन को वापिस लेने से उसे तदर्थ खारिज किया गया—इस से उसे डिक्री का स्तर प्राप्त नहीं होता है—पर आन्वयिक (रचनात्मक) पूर्व न्याय का सिद्धान्त प्रभावशाली नहीं होगा। (पद संख्या 20 तथा 21)

- (c) C.P.C., Order 21, Rule 97 & Sec. 115—Obstructor in previous execution—In second execution application obstructor is not a party so he can not be heard—Obstructor can avail alternative remedy—Revision is not maintainable.] (Para 25)

Revision not maintainable.

(ग) सिविल प्रक्रिया संहिता—आदेश 27 नियम 97 तथा धारा 115—पूर्व में किए निष्पादन में वह आक्षेपकर्ता रहा—निष्पादन की द्वितीय कार्यवाही में यह आक्षेपकर्ता पक्षकार नहीं होने से सुना नहीं जा सकता—वह अन्य विकल्प का सहारा ले—पुनरीक्षण भी नहीं हो सकेगा। (पद संख्या 25)
पुनरीक्षण पोषणीय नहीं।

Case law referred—

- (1) Dhananjai vs. Ram kumar & Ors. (ILR(1963) 13 Raj.-47).
- (2) Ibrahim vs. Phoolchand (1960 RLW-618).
- (3) Brijesh Kumar vs. Hiralal & Ors. (1988 (1) WLN-330).
- (4) Dargah Committee vs. Abdul Gafoor (AIR 1978 Raj.-129).
- (5) Narayan vs. Smt. Kalan Bai (1985 RLW-140).
- (6) L.Somunaidu vs. M. Gangamma (AIR 1969 AP-192).
- (7) Satuadhayan vs. Smt. Deorajin Debi (AIR 1960 SC-941).
- (8) Sarguja Transport Service vs. S.T.A.Tribunal, Gwalior (AIR 1987 SC-88).
- (9) Haldhar Pd. vs. Giridih Municipality (AIR 1989 Patna-321).
- (10) Hoshnak Singh vs. UOI (AIR 1979 SC-1328).
- (11) P.D. Sharma vs. UOI (AIR 1979 SC-1328).
- (12) P.D. Sharma vs SBI, (AIR 1968 SC-985).
- (13) Virudhanagar Steel Rolling Mills Ltd. V. Govt. of Madras (AIR 1968 SC-1196).
- (14) UOI vs. Godfrey Phillips India Ltd. (1985 (4) SCC-369).
- (15) Chhotulal vs. Ratanchand (1987 (1) WLN-215).
- (16) Dattatray vs. Mangal (AIR 1983 MP-82).
- (17) Raghuvar Dayal vs. Hargovind (AIR 1958 Raj. 287).

RLW 1990(2)

Jai Prakash vs. Khimraj (Chopra, J.)

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R.R. Nagori *for petitioner.*

K.C. Samdariya *for non-petitioners.*

JASRAJ CHOPRA J.,—This revision petition has been filed against the order of the learned Munsif & Judicial Magistrate, Desuri dated 20.8.1986 where by the learned Munsif has rejected the application filed under S.151 C.P.C.

2. The fact necessary to be noticed for the disposal of this revision petition briefly stated are: that the non-petitioner-decree holder Khimraj obtained a decree for arrears of rent and ejectment against the non-petitioner No. 2-Judgment debtor Smt. Shanti Devi on 1.6.1979, which was later on confirmed in appeal on 23.2.1983. Thereafter, the decree-holder khimraj filed an execution application for execution of his decree and on that application, warrant of possession was issued by the Executing Court. Since the petitioner was in possession of the disputed property, he obstructed the execution of the decrees. A note to this effect was made on the warrant of possession by the Amin that the petitioner was obstructing the execution of the decree and was residing there as a tenant. Thereafter, the petitioner filed an application before the Executing Court under O.XX, r.97 CPC on 28.5.1984 and the application came to be dismissed on 1.6.1984 as it was not maintainable.

3 It is alleged that on 7.7.1984, the decree-holder Khimraj filed an application that since the petitioner is resisting the execution of decree, the warrant of possession may be executed against him as well. The learned Executing Court, after hearing both the parties, ordered on 1.8.1984 that since the decree-holder could not satisfy the Court that the petitioner has been residing as a sub-tenant the allegations contained in application under O.XXI, r. 97 CPC requires an enquiry and, thereafter, the application filed by the decree-holder on 9.7.1984 for issuing warrant of possession against the petitioner was dismissed and the case was posted for reply of the petitioner. The petitioner filed his reply to the application under O.XXI, r.97 CPC on 16.5.1987, case was ordered to be posted for the evidence of the decree-holder and the Objector-petitioner. Nowever, on 19.8.1987, the decree-holder filed an application stating therein that does not want to proceed with the execution and further requested that he does not press his application under O.XXI, r. 97 CPC. On this application, the Executing Court ordered on 19.8.1987 that since the decree-holder himself does not want to proceed with application, therefore, there is no justification for proceeding with the execution. The application was dismissed and the file was ordered to be consigned to the record.

4. It is alleged that after two months of the dismissal of the said application, the decree-holder filed a fresh application against the judgment-debtor for execution of the decree and requested for issuance of warrant of possession. The petitioner again filed an application under S. 151 CPC stating therein that the decree-holder Khimraj is trying to obtain possession without following the due process of law and since his application under O.XXI, r. 97 C.P.C. was dismissed as not pressed and it has been held by the Court that the petitioner is in possession of the disputed property in his own right, the second execution petition could not have been entertained and it should be dismissed. It was further claimed that this execution application was filed two years after the passing of the decree and no notice for possession could have been issued without first calling upon the judgment-debtor to show cause as to why possession warrant be issued against him. According to the petitioner, the second execution petition filed by decree-holder-non petitioner No.1 Khimraj is barred by the principles of constructive res judicata as per S.11 C.P.C. It was also claimed that it is a misuse of the process of Court. However, the application of the petitioner filed

under s. 151 C.P.C. came to be dissimised by the learned Munsif & Judicial Magistrate, Desuri vide his order dated 20.8.1988 and hence this revision.

5. I have heard Mr. R.R. Nagori, the learned counsel appearing for the petitioner and Mr. K.C. Samdariya, the learned counsel appearing for the decree-holder-non-petitioner No.1 Shri Khimraj and have carefully gone through the record of the case.

6. It was contended by Mr. R.R. Nagori, the learned counsel appearing for the petitioner that in cases of execution, if any obstruction or resistance is made by a third party then it is only the decree-holder who should move an application under O.XXI, r.97 C.P.C. The obstructor has no right to move the Court. In this respect, my attention has been drawn to a decision of this Court in *Dhananjai V. Ram kumar & Ors.*, (1) where in a learned single Judge of this Court has held that before any investigation is made under O.XXI, r.97, it is necessary that an application should be made to the Court by the decree-holder that he was being obstructed in the execution of the decree and no investigation can be made on an application of a third party, who claims to be in possession. It was further held that even in such cases of resistance, the executing court has ample power to deliver possession even against a person, who was not a party to the original suit provided it is satisfied that the person offering resistance to delivery of possession has no bonafide claim.

7. In *Ibrahim V. Phoolchand* (2), it has been observed by a learned single Judge of this Court :

"Before an investigation is made under O.XXI, r. 97 it is necessary that an application should be made to the court by the decree-holder or auction purchaser. No investigation can be made on application of a third party which claims to be in possession. A third party is only entitled to be dispossessed, provision for which has been made in r.100 of O.XXI, r. 99 of the New CPC)."

A learned single Judge of this Court in *Brijesh Kumar V. Hiralal & Ors.* (3) has observed:

"A stranger to the decree who claims to be not bound by the decree has no right to approach the Court and to get his claim or objection adjudicated upon and that stage will come only when he is dispossessed."

In *Dargah Committee V. Abdul Gafoor* (4). It has been held by this Court that where the person in possession obstructed execution of the decree for ejectment and filed an application under s.151 alleging that he was not bound by the decree, the executing court could pass any order it thought fit but could not direct the decree-holder to file an application under O.XXI, r.97 CPC.

8. It may be stated here that according to the provisions of the Old C.P.C., filing of an application under O.XXI, r.99 ((Old) O.XXI, 97 C.P.C. (New)) was optional and, there, it was held that the decree-holder cannot be compelled to file such an application. However, this is clear that the obstructor cannot move the Court under O.XXI, r.97 C.P.C. Thus, so far as this aspect of the matter is concerned, the law well settled by a catena of decisions of this Court that the obstructor has no right to move the Court under O.XXI, r.97 C.P.C. for adjudication of his rights. That can only be done by the decree-holder or the auction purchaser and by the obstructor.

9. It was next contended by Mr. R.R. Nagori, the learned counsel appearing for the petitioner that as the earlier application filed under O.XXI, R. 97 C.P.C. by the decree holder has been dismissed as withdrawn this Second execution application is barred by the principles of constructive res judicata. This contention

of Mr. Nagori has been seriously opposed by Mr. K.C. Samdariya, the learned counsel appearing for the decree-holder-non-petitioner No.1, who was submitted that the decree-holder has a right to file any number of application for execution of his decree within the period of limitation file his decree is fully satisfied. According to him, the principle of constructive res judicata can be disposed of on merits after an enquiry. He has submitted that disposing of an application for non-prosecution is not equivalent to the abandonment of a claim. It was submitted that when the application under O. XXI, r.97 C.P.C. has not been disposed of on merits, the principle of constructive res judicata which is applicable to the suits under O. XXI, r.1 C.P.C. is not applicable to such application. In this respect, Mr. Samdariya, the learned counsel on a decision for the decree-holder has placed reliance on a decision of this Court in *Narayan V. Smt. Kalan bai* (5) wherein a learned single Judge of this Court has observed:

"O. XXI, r. 97 C.P.C. provides that if the execution is obstructed, the decree-holder can, by an application, complain of such obstruction. Rule 97 C.P.C. is however permissible. The decree-holder is not bound to resort to the remedy under r.97 CPC. He may apply for a fresh writ of possession under 0.21, r.35 CPC. The law does not compel a decree-holder to complain against the resistance the resistance or obstruction and may, in his wisdom apply for a fresh warrant of possession. It is of course, open him to move the Court under 0.21, r.97 CPC. The choice lies with him. If he obtains a fresh writ of possession and is again obstructed by the same person, he can move an application under).21, r.97 CPC. for the removal of such obstruction. His caused on the second or successive occasion. His application cannot be held to be time barred if it is filed within 30 days of the second r successive resistance, which is complained of. the decree-holder is entitled to take out any of . The decree-holder is entitled to take out any number of warrants of possession so long as his execution in execution of such warrants provides a fresh cause of action for filing an application under 0.211, r.97 C.P.C. "

Mr. Samdariya, the learned counsel appearing for the respondent- No.1 (decree-holder) laid great emphasis on the observations of the Court that the decrees holder is entitled to take out any number of warrants of possession so long as his execution applications not barred.

10 Reliance was also placed on a decision of the Andhra Pradesh High Court in *L. Somunaidu V. M. Gangamma* (6) wherein it has been observed:

"That if the court declines to give any decision on the question involved or dismisses the petition for all default or the petition is allowed to be withdrawn, in all such cases, it cannot be said that there was any inquiry in regard to the question involved and upon which the Court can be said have been satisfied one or the other. Such an order cannot fall either under r.98 or r.99 as the case may be and are not conclusive so as to bar a fresh application under r.97 or to bar a suit instituted more than one year from the date of such order."

11. Mr. R.R. Nagori, the learned counsel appearing for the petitioner has submitted that the decision in *L. Somunaidu's* case (supra) relates to the provisions of) .XXI, r. 97 CPC and on wards of old Old CPC prior to its amendment in the year 1976. He has submitted that according to the provisions of the Old CPC, filing of an application under O. XXI, r.97 CPC was optional and the decree-holder was free to avail that remedy. He has submitted that now the Code of Civil procedure has been amended by Amendment Act of 1976.

According to him, as per the provisions of the Code of Civil Procedure, 1908, as it exists today, if any obstruction is put forth than the decree-holder is required to file an application under O.XXI, r.97 C.P.C. and that application has to be enquired into by determining the questions mentioned in O.XXI, r.101 C.P.C. and once such an order is passed, it has the force of a decree. No fresh suit can be filed as regards that controversy even if question of right, title and interest in the property may have been involved. A perusal of the provisions of rr.97, 101 and 103 of O.XXI, C.P.C. make it amply clear that such proceedings are in the nature of suit and the order passed after such an enquiry has the character of a decree and, therefore, the provisions of O.XXIII, r.1 C.P.C. shall have full application to such proceedings. Even an application which has been dismissed as withdrawn without permission of the Court to file a fresh application, then second and subsequent application under the same provision is also barred by the principles of constructive res judicata.

12. Mr. R.R. Nagori, the learned counsel appearing for the petitioner has drawn my attention to a decision of their lordships of the Supreme Court in *Satyadhyan V. Smt. Deorajin Debi* (7) wherein it has been held that the principle of res judicata applies also as between two stages in the same litigation to this extent that a court, whether the trial court or a higher court having at earlier stage decided a matter in one way will not allow the parties to re-agitate the matter again at a subsequent stage of the same proceedings. Mr. Nagori has submitted that as per this authority, if a matter has been decided in one or the other on merits than that matter which has been decided on merits cannot be allowed to be re-agitated against at a subsequent stage proceedings.

13. Mr. Nagori has further placed reliance on a decision of their lordships of the Supreme Court in *Sarguja Transport Service Vs. S.T.A. Tribunal, Gwalior* (8) wherein it has been held that a petitioner after withdrawing a writ petition filed by him in the High Court under Art.226 without the permission to institute a fresh petition cannot file a fresh writ petition in respect of the same cause of action the High Court under that Article. It was further observed that in order to prevent a litigant from abusing the process of the Court by instituting suits again and again in the same cause of action without any good reason, the C.P.C. insists that he should obtain the permission of the Court to file a fresh suit after establishing either of the two grounds mentioned in O.23, r.1(3). The principle underlying the above rule is founded on public policy but it is not the same as the rule of res judicata. This principle underlying R.1 of O.23 should be extended in the interests of administration of justice to cases of withdrawal of writ petitions also not on the ground of res judicata but on the ground of public policy. That would also discourage the litigant from indulging in bench hunting tactics. In any event there is no justifiable reason in such a case to permit a petitioner to invoke the extraordinary jurisdiction of the High Court under Art.226 once again. While the withdrawal of a writ petition filed in a High Court without permission to file a fresh writ petition may not bar other remedies like a suit or a petition under Art.32 since such withdrawal does not amount to res judicata, the remedy under Art.226 should be deemed to have been abandoned by the petitioner in respect of the cause of action relied on in the writ. It is, therefore, clear that the principle of res judicata as such has been made application in matters of writ petitions.

(14) *Sarguja Transport Services* case (supra) being in contradiction with the earlier decisions of their lordships of the Supreme Court (rendered by larger Benches) came to be noticed by a Division Bench of the Patna High Court in *Haldhar Pd. vs. Giridih Municipality* (9). In that case, on behalf of the petitioner, it was contended that in view of the decisions of the Supreme Court in *Hoshnak*

Singh V. UOI(10). P.D. Sharma V. UOI(11). P.D. Sharma V. SBI(12) and Virudhanagar Steel Rolling Mills Ltd. V. Govt. of Madras(13) the second writ petition cannot be said to be not maintainable. It was also submitted that in view of the decision of the Supreme Court in UOI V. Godfrey Phillips India Ltd.(14) the two Judge Bench of the Supreme Court in Sarguja's case could not have disagreed with the larger Division Benches of the Supreme Court including Constitution Bench. The Division Bench of the Patna High Court felt that in Sarguja Transport's case, (supra) the Supreme Court applied the principle of O.XXIII, r.1(3) of the Code on the ground of public policy and in other cases decided other lordships of the supreme court which have been noticed above the rule of res judicata, i.e. bar of s.11 of the Code, was applied. It was further felt that the principles embodied in s.11 and in O.XXIII, r.1(3) are different, one bars a suit, the other bars a remedy. This was specifically noticed in Sarguja Transport's case (supra). The Division Bench of the Patna High Court held that the contention of the petitioner that in Sarguja Transport, a division of two Judges of Supreme Court differed with larger Division Bench or Constitution Bench is not correct. I will discuss that aspect of the matter a little later.

(15) Mr. R.R. Nagori, the Learned counsel appearing for the petitioner has contended that the decision rendered in Narain's case (supra) relates to the period when the provisions of Old C.P.C. were in force. The decision in Narain's case (supra) came to be noticed by a learned single Judge of this Court in Chhotulal V. Ratanchand (15). wherein it has been held that even dismissal of an application under O.XXI, r.97 C.P.C. is adjudication of an application under O.XXI, r.97 C.P.C. on account of the provisions contained in rr.98 and 101 of O.XXI, the decision in an earlier application will operate as res judicata and will bar the entertaining of a subsequent application under O.XXI, r.97 CPC by the concerned Court. It was further observed that it may be that a decree holder who faced with an obstruction may instead of applying under O.XXI, r.97 CPC. take recourse to the remedy of filing a suit for declaration and possession. But having taken recourse to the remedy provided under O.XXI, r.97 CPC and having failed in that, he cannot turn round and urge that he is not bound by the adverse decision.

(16) In Chhotulal's case, one Ratanchand in execution of his decree against the judgment-debtor got a warrant of possession issued from the Munsif, Bikaner in execution case No.68 of 1979 of that court. That warrant of possession was returned by the sales Ameen to the executing court with a report that the petitioners Chhotulal and Samt. Sada, who said to be brother and mother respectively of the judgment-debtor, obstructed the delivery of possession. Thereupon, the decree-holder Ratanchand filed an application under O.XXI, r.97 CPC on November 7, 1981. Notice of that application was issued to the obstructors. The obstructors filed a reply in which they pleaded that the application of decree-holder Ratanchand under O.XXI, r.97 CPC was barred by limitation. Some other objections were also raised. The Munsif, hearing the arguments came to the conclusion that Ratanchand under O.XXI, r.97 CPC in execution case No.26 of 1979 was barred by limitation and accordingly, dismissed the same on May 22, 1982. The decree-holder did not file any appeal against the judgment of Munsif, Bikaner dismissing his application under O.XXI, r.97 CPC. However, the decree-holder got fresh warrant of possession issued for possession of the disputed property in execution case No.68 of 1979. On this warrant of possession, the Sales Ameen made a report on September 3, 1982 that the petitioner again obstructed the taking of possession and refused to deliver possession of the disputed property. The non-petitioners-decree-holder alleged that the petitioners were in possession of the property on behalf of

the judgment debtor Shankarlal Bhanwarlal and they prayed that the petitioners be dispossessed from the disputed property. In reply to the second application under O.XXI, r.97 CPC, the petitioners referred to the dismissal of the previous application on the ground that the same was barred by limitation and that judgement of the second application under O.XXI, r.97 CPC would not be entertained as the First application under the said order had been dismissed on May 22, 1982, as a result of the amended R. 103 of O.XXI; because the provisional Judgment dated May 22, 1982 had the force of a decree. Aggrieved by this decree of the Munsif, Bikaner dated January 31, 1983, the decree-holder Ratanchand filed an appeal before the District Judge, Bikaner who by his order dated November 2, 1985 allowed the appeal of the decree-holder and set aside the judgment of Munsif, Bikaner dated January 31, 1983. It is against this Judgment of the first appellate court that the obstructionists filed the revision petitions before this Court and a learned Single Judge of this Court has held that even dismissal of an application under O.XXI, r.97 CPC is adjudication of an application under O.XXI, r.97 CPC on account of the provisions contained in rr.98 and 101 of O.XXI, the decision in earlier application will operate as res judicata and will bar the entertaining of a subsequent application under O.XXI, r.97 CPC by the concerned court. While discussing the provisions of O.XXI, r.97 CPC, the learned single Judge has held that it would thus appear that all the events in Narain's case (supra) took place before the provisions contained in rr.97 to 103 of O.XXI CPC were in an unamended state. The decision in Narain's case would not help us in deciding a case in which the successive obstructions have taken place after the above provisions had been amended by the Amending Act No.104 of 1976 and, therefore, decision in Narain's case does not conclude the matter. The learned single Judge further observed :

"that in amended r.101 of O.XXI of the Code, the expression 'all questions including questions relating to right, title or interest in the property' and the expression 'and not by a separate suit' are very pertinent. In my view, the expression 'all questions' includes within its ambit a plea raised by an alleged obstructionist that the application under O.XXI, r.97 CPC is barred by limitation. When such an application is held by the court to be barred by limitation, its adjudication is a question involved and arising between the parties to a proceeding on an application under O.XXI, r.97 CPC. The decree-holder having taken recourse against an obstructionist by moving an application under r.97 of O.XXI has to bet it adjudicated under r.101 of O.XXI and he cannot then file a separate suit, for determination of any question which he has himself chosen to raise by moving an application under O.XXI, r.97. The it is pertinent to note that by r.103 which has also been substituted for the old rule, it has been expressly and unambiguously provided that where any application has been adjudicated upon under r.98, the order made thereon shall have the same force and be subjected to the same conditions as to an appeal or otherwise as if it were a decree. Since the adjudication under r.98 was given the force of a decree, it also became necessary to insert some new rules in O.XXI, r.97 CPC. Rr.105 and 106 were meant to introduce provisions for dismissing the application under orders for restoring the application and necessary because prior to the amendment, the remedy in such events was by a suit which was taken away by the express provisions contained in r. 101 O.XXI."

(17) While relying on the decision of the Madhya Pradesh High Court in Dattatray V. Mangal (16) the learned Judge held that if an earlier application

has been adjudicated upon under r.98 of O.XXI, C.P.C. then in such cases, fresh application is barred by the principle of res judicata.

(18) This is bed rock, on which Mr.Nagori, the learned counsel appearing for the petitioner has built the entire edifices of his arguments.

(19) It will be very useful to quote rr.98, 101 and 103 of O.XXI, C.P.C:

" O.XXI,r.98 Orders after adjudication:-(1) Upon the determination on the questions referred to in r.101, the Court shall in accordance with such determination and subject to the provisions of sub-r.(2),-

(a) make an order allowing the application and directing that application be put into the possession of the property or dismissing the application; or

(b) pass such other order as , in the circumstances of the case, it may deem fit.

(2) Where, upon such determination, the Court is satisfied that resistance or obstruction was occasioned without any just cause by the judgment-debtor or by some other person at his instigation or his behalf, or by any transferee, Where such transfer was made during the pendency of the suit or execution proceedings, it shall direct that the application be put into possession of the property, and where the applicant is still resisted or obstructed in obtaining possession, the Court may also, at the instance of the applicant under the judgment -debtor, or any person acting at his instigation or his behalf, to detain in the civil prison for term which may extend to thirty days.

O.XXI, r.101 Questions to be determined;-All questions including question relating to right, title or interest in the property arising between the parties to a proceeding on an application, and relevant to the adjudication of the application, shall be determined by the Court dealing with the application and not by a separate suit and for this purpose, shall, the Court, shall, not with standing anything to the contrary contained in any other law for the time being in force deemed to have jurisdiction to decide such questions.

O.XXI, r.103 : Orders to be treated as decrees:- Where any application has been adjudicated upon under r.98 or r. 100, the order made thereon shall have the same force and be subject to the same conditions as to an appeal or otherwise as if it were a decree.

Sub.r.(2) of r.97 of O.XXI. C.P.C. clearly provides that where any application is made under sub-r.(1), the Court shall proceed to adjudicate upon the application in accordance with the provisions herein contained. R.98 of O.XXI C.P.C. provides that upon the determination of the questions referred to in r.101, the Court, shall, in accordance with such determination and subject to the provisions of sub.r. (2) make an order allowing the application and directing that the applicant be put into the possession of the property or dismissing the application or pass such other order as, in the circumstances of the case it may deem fit. Thus, it is clear that any order that has to be passed must be passed on the determination of the questions referred to r.101 or O.XXI, C.P.C. provides that all questions including question relating right, title or interest in the property arising between the parties to a proceeding on an application under r.97 or r.99 or their representatives, and relevant to the adjudication of the application, shall be determined by the Court dealing with the application and not by a separate suit and for this purpose, the Court shall, notwithstanding anything to the contrary contained in any other law for the time being in force, be deemed

to have jurisdiction to decide such questions. Thus, as per r.101 of O.XXI.C.P.C., the Court is required to adjudicate and determine the question raised in the application and such questions may be the question relating to the right, title in the property or any other question that may arise between the parties it is, therefore, clear that unless such application is decided after proper adjudication and determination of the questions raised in the application, the order passed on such an application cannot be considered to an order passed under rr.97,98 and 101 of O.XXI, r. C.P.C. R.103 of O.XXI, C.P.C. is a deming provision and it starts with the language 'Where any application has been adjudicated upon under r.98 or r.100'. R.103 of O.XXI, C.P.C. provides that any application has been adjudicated upon under r.98 or r.100, the order made thereon shall have the same force and be subject to the same conditions as to an appeal or otherwise as if it were a decree. Thus, the adjudication of the questions involved in r.101 of O.XXI, CPC is much essential to give the character of a decree to an order passed on the application under O.XXI, r.97 CPC. Thus, the import of the deming provision cannot be extended beyond the language of the r.103 of O.XXI, C.P.C.

(20) In this case, on the earlier application, the question raised in the application as also in r.101 of O.XXI CPC were not adjudicated and determined by the Court after due application of its mind because the application filed under O.XXI, r.97 CPC was dismissed as withdrawn. Keeping in view the aforesaid discussion, I am firmly of the view that when the question raised in the application were not adjudicated upon by the Court after due application of its mind and the said application was dismissed as withdrawn then it cannot be said that the applicant's application filed under O.XXI, r.97 C.P.C. has been dismissed on merits or the questions raised in the application as also in r.101 of O.XXI, CPC were adjudicated upon by the Court. In my view, such dismissal of the application under O.XXI, r.97 CPC based on the request for withdrawal of the application cannot acquire the character of a decree and, therefore, the principle of constructive res judicata cannot be made application to such proceedings.

(21) The learned authors V.R. Manohar and W.W.Chitaley in their treatise AIR Commentaries on the Code of Civil procedure (V of 1908) (Volume-4) (at page 314) have said that the procedure prescribed by the Old rules i.e. O.XXI, rr.97 to 102 was summary and it was not intended that the parties should be permitted to adduce oral evidence. In view Act, 1976. the procedure is not a summary one. It is a full enquiry and the Court has to adjudicate on the merits of the application, while commenting on r.101, the learned authors have stated at page 333 that according to the aforesaid r. 101, the Court is bound to go into and decide all questions including questions relating to right, title or interest in the property arising between the parties to a proceeding in an application under rr.97 and 99 of O.XXI, C.P.C. Thus, stress has been laid on the adjudication and determination of the questions involved and not upon the dismissal of the application on the ground that it is not pressed. In Chhotulal's case (supra), it has been held that if once an application has been decided on merits after adjudication of the questions involved, may be the question of limitation, the order passed on such application will operate as res judicata. As stated above, in this case, the earlier application was not decided after adjudication and determination of the questions involved in the matter because it was dismissed as not pressed and, therefore, Chhotulal's case (supra) does not help the contention of Mr. Nogori. If an application under O.XXI, r.97 CPC has been decided on merits after adjudication and determination of the questions involved on r.101 of the O.XXI, CPC as also on other grounds raised in the application then of course, that would furnish a ground for the

application of the principle of constructive res judicata but if it is not adjudication and determined after due application of mind, the order passed on such an application does not acquire the character of a decree.

(22) I have already held that although the proceedings under O.XXI, rr.97 and 98 read with rr.99,100,101 may partake the nature of a suit the enquiry may held as if it is enquiry in the suit but such proceedings do not acquire the character of a suit as such and, therefore, the provisions of O.XXIII, r. CPC cannot be made application to such proceedings. There is no deeming provision in the aforesaid rules to deem these proceedings as that of a suit and hances, the provisions of O.XXII, r.1 CPC are not application to such proceedings as such. Moreover, their lordships have held that they are the rules of public policy. If a decree-holder has a right to files applications any number of times for obtaining the fruits of his decree within the period of limitation of 12 years after passing of the decree then it is a matter of public policy that he cannot be denied the fruits of his decree on mere technical grounds.

(23) In this case, not only the decree relates to the delivery of possession but it also relates to the arrears of rent about which no orders have been passed and, therefore, it cannot be said that no execution can be levied. Even in Chhotulal's case(supra), the learned Judge did not held that the second execution application is barred by the principle of constructive res judicats. What has been held is that the second application under O.XXI, r.97 CPC filed by the decree-holder after dismissal of the earlier application under O.XXI, r.97 CPC on merits is barred by the principle of constructive res judicats. The second execution application was very much entertained and, therefore, that authority case) is not an authority on the subject that on second execution application can be filed by the decree-holder. Moreover, the learned Judge in chhotulal's case has held that once an applicaton under O.XXI, r.97 CPC or under O.XXI r. CPC has been decided on merits keeping in view the questions involed in r.101 of O.XXI, CPC and all other questons that are raised in the application then no second application under O.XXI r.97 or r.99 CPC can be entertained. The learned Judge in chhotlal's case (supra) has not overruled the dictus laid down in Narain's case(supra) that the decree-holder has a right to fils any number of execution applications the period of limitation and, therefors, to that extent, that decision does not stand overruled either on account of the change in the C.P.C. or on account of the decision in Chhotulal's case (supra).

(24) I may also State here that in this case, the decree-holder has filed another execution applicaton or execution of his decree against the judgment-debtor. If the petitioner is still in possession of the property and he still resists in the execution of the decree, the decree-holder may avail any kind of the alternative remedy, which is available to him in law. this is not the case, where any second application under O.XXI, r.97 CPC has been filed. Rather, it is a case of second excution application filed against the judgment-debtor in those proceedings, the obstructor-petitioner is not at all a party and, therefore, he has no right to be heard because he is a strangar to the proceeding. If the petitioner feels that he is the tenant of respondent No.1 and he is not a sub-tenant, he can avail any alternative remedy under the law. It has been brought to my notice by the learned counsel appearing for the petitioner that in this matter, a suit has been filed on behalf of the petitioner for vendication of his rights. Thus, it would be proper for the petitioner to avail any lagal remedy that is available to him in that suit. He has no right to claim any audience in the execution proceedings filed against the judgment-debtor.

(25) The petitioner has mentioned in his memo of appeal that he also filed an application under O.XXI, r.97. CPC stating therein that the execution petition was filed beyond two years of the passing of the decree and, therefore, a notice has to be issued to the judgment-debtor. That plea was not specifically pressed during the arguments. Still, it may be stated that this plea is not available to the Obstructor but it is available to judgment-debtor. Secondly, in this case, in the earlier execution petition, warrant for delivery of possession was issued against the judgment-debtor and, therefore, case is fully covered by r.22 of O.XXI, CPC and so, that plea also has no legs to stand.

(26) It was contended by Mr.K.C.Samdariya, the learned counsel appearing for the decree-holder-respondent No.1 that in view of the decision of this Court in Raghuvar Dayal V. Hargovind(17) this revision petition is not maintainable. He has submitted that the petitioner has already availed his alternative remedy and he is not at all a party to the execution proceedings. Even the Sale Ameen has not reported in execution of the second warrant of possession issued by the Court that any obstruction has been put by any party. In this case, no second application under O.XXI r.97 CPC has been filed. The petitioner has no right to file an application under O.XXI r.97 CPC. In the facts and circumstance of this case, I am firmly of the view that the contention of the decree-holder-respondent No.1 that this revision petition is not maintainable deserves to be sustained. This second execution relates to the execution of the decree against the judgment-debtor, in which the obstructor-petitioner is not at all a party. No obstruction has been reported by the sale Ameen in execution of the second warrant of possession issued by the Court and no second application under O.XXI, r.97CPC has been filed. If the petitioner feels that his second application for execution of the warrant of possession adversely affects him, he may seek any alternative remedy, which is available to him in the suit, which has been filed by him. He cannot be heard in the execution petition and, therefore, in my opinion, the learned lower court was right in rejection the application under S.151 CPC filed by the petitioner. Thus judged from any angle, I am firmly of the view that this revision petition is not maintainable.

J.R. CHOPRA & N.K. JAIN, JJ.

Kewal Singh versus State of Rajasthan (22)

D.B. Civil writ petition No. 2345 of 1990, decided on 10th November, 1990

- (a) [Rajasthan Panchayat Act, 1953, Sec. 17 (4 A)—At the time of passing of suspension order no charge for the offences involving moral turpitude was framed—Order of suspension quashed with a direction that the state Govt. will be free to pass any further order.] (Para 4)
Writ petition succeeds.

(क) राजस्थान पंचायत अधिनियम, सन् 1953 धारा 17 (4क) —निलम्बल का आदेश पारित करते समय कोई आरोप ऐसे अपराधों का विरचित नहीं किया गया जो नैतिक अधमता से लिये हो—निलम्बन का आदेश विखण्डित किया गया इस निर्देश के साथ कि राज्य सरकार आगे अन्य कोई आदेश देने हेतु मुक्त रहेगी (पद संख्या 4)
रिट याचिका स्वीकार।

Case law referred—

- (1) Banshidhar Soni Vs. State, (1988 (1) WLN-270)
(2) Sajranglal vs. State (1981 RLW-355).